

the question *who* are portionists, involves the inquiry when or at what time portions, which are regulated by peculiar principles, are vested; and again, even if portions may have become vested, it remains to be asked whether they may not have become divested on the doctrines of ademption and satisfaction — doctrines which open a wide field of controversy, and are to some extent left still in an unsatisfactory state.

Amount to be raised. — In the *second* section we shall explain (and this may be compressed within much narrower bounds) what is the *amount* to be raised, both as regards the principal sum and interest, and also as to costs; [and also in what cases maintenance will be allowed, even though the corpus be not vested.]

When to be raised. — In the *third* section we shall have to consider at *what time* the portions ought to be raised, and more particularly when portions are charged on *reversionary* interests, for then either the estate must suffer by raising the portions at a sacrifice in *præsent* out of an interest to take effect in future, or else the portionists must be left destitute until the reversion falls into possession.

[*386] *** Mode of raising.** — Lastly, in the *fourth* section we shall offer some practical remarks as to the best *mode* of raising the portions, as whether by sale or mortgage, or a fall of timber, or out of mines, or in what other manner.

SECTION I.

WHO ARE TO BE REGARDED AS PORTIONISTS.

Under this head we shall inquire: *First. Who* are meant by younger children where the estate charged is settled on an “*eldest*” child. *Secondly. Who* are meant by younger children where the estate charged is *not* settled on an “*eldest*” child. *Thirdly. At what time* the portions vest. *Fourthly. Of ademption and satisfaction.*

Settlement on eldest son. — *First. Who* are meant by younger children where the estate charged is settled on an “*eldest*” child.